

1.

CASE #	CASE NAME	HEARING NAME
CVPS2402431	RADOFF vs LOPEZ	MOTION TO QUASH DEPOSITION SUBPOENA

Tentative Ruling:

The defendant's motion to quash deposition subpoena is granted in part and denied in part. In particular:

The motion is granted as to Item #9 of the subpoena.

The motion is denied as to Item Numbers 1-7, but on the condition that the subpoena is modified as follows:

- Item Numbers 1-8 are limited to "non-content records," as authorized under 18 U.S.C. section 2702, subdivision (c).
- The periods covered by the subpoena shall be limited to the period from 2:40 A.M. to 4:00 A.M.
- The disclosure shall be subject to a limited protective order providing that the records would be available only to counsel and experts and shall only be used in the present lawsuit.
- A formal order shall be prepared, served, and submitted by counsel for Plaintiffs.

The motion is denied as to Item #8 on the same conditions as for ##1-7, except that the time period is from the date of the accident to the present.

Analysis:

Items 1 – 8: These items seek categories of "non-content" information which are reasonably particularized and within the permissible scope of discovery. Contrary to Defendant Lopez's contention, the disclosure of the SCA does not prohibit disclosure of "non-content records." (See 18 U.S.C., § 2702(c)(6) [disclosure is authorized to "any person other than a governmental entity"].) Moreover, although Defendant Lopez may have a legally protected privacy interest over such records, Plaintiffs sufficiently demonstrate that the information (a) is directly relevant to the cause of action or defense, and essential to a fair resolution of the lawsuit; and (b) cannot be obtained through any less intrusive means.

Item 8: The time period is extended for this category of documents to capture the latest password, the absence of which is preventing the forensic examination from being completed.

Item 9: This portion of the subpoena is not reasonably particularized. As a result, it may include records that are protected under the Stored Communications Act (18 U.S.C., § 2701 et seq., "SCA").